DPDP ACT, 2023 · FOR ADVOCATES

Your clients need DPDP compliance. Does your own chambers?

A law firm is a Data Fiduciary like any other business, and it holds some of the most sensitive data there is.

₹250 cr

maximum penalty for failing to take reasonable security safeguards

Jyoti Kumari · Law × AI × Automation

Swipe →

A NORMAL DAY IN CHAMBERS

Five habits that can become a reportable breach

1. Aadhaar and case papers on an associate's personal WhatsApp

2. Drafts carried to the typist on an unencrypted pen drive

3. A Drive folder shared as "anyone with the link"

4. An intern pastes client facts into a free AI tool

5. 10 years of closed files in a store room, with no retention decision

THE COMMON ASSUMPTION

"The litigation exemption covers us." Only partly.

SECTION 17(1)(a) COVERS

Processing **necessary** to enforce a legal right or claim

Pleadings, evidence, witness data

Opposing party's records

IT MAY NOT COVER

Advisory, drafting, due diligence

Website, enquiries, newsletters

Billing and your own staff's data

Data kept after it stops being needed

Even where the exemption applies, **Section 8(5) security safeguards** and accountability for vendors (8(1)) **still apply**.

DPDP RULES, 2025 · PHASED ROLLOUT

The clock is already running

Nov 2025

Rules notified. Data Protection Board of India constituted.

Nov 2026

Consent Manager framework opens. The soft phase ends.

May 2027

CORE

All core duties apply: notice, consent, security safeguards, breach intimation, erasure, rights, grievances, children's data.

About six months is enough time to prepare, but only if you start now.

BUILT FOR ADVOCATES' CHAMBERS & SMALL FIRMS

The DPDP Compliance Kit for Law Firms

- 00 Implementation guide + 30-day plan
- 01 Client privacy notice
- 02 Engagement-letter clause & consent
- 03 Website privacy policy
- 04 Retention & erasure policy
- 05 Rights SOP + 7 response letters
- 06 72-hour breach playbook
- 07 Vendor data processing agreement
- 08 Staff & intern policy
- 09 Employee privacy notice
- 10 Chambers security checklist
- XLS Registers workbook

Editable Word and Excel files, ready for your letterhead.

A laptop with client files is stolen. What now?

Hour 0–1	Call the partner on call. Don't delete anything. Note the time you found out.
Hour 0–2	Contain: remote wipe, reset passwords, revoke shared links.
Without delay	Intimate the Data Protection Board and **each affected person** in plain language.
72 hours	Send the detailed report to the Board: facts, cause, mitigation, notices given.

60-SECOND SELF-CHECK

Can your chambers answer yes to all three?

1. Does every email account used for client work have two-step verification?

2. Is client data on WhatsApp kept only on firm devices or a business number?

3. If a laptop is stolen tonight, do you know who calls whom and what goes to the Board within 72 hours?

If any answer is **"no"**, that is where your DPDP work starts.

GET THE KIT

Start this week. Be ready before May 2027.

11 templates and a registers workbook, written for how Indian chambers actually work: WhatsApp, clerks, typists, interns and court files.

- ✓ Editable Word and Excel files
- ✓ A 30-day implementation plan
- ✓ Ready-to-send breach, consent and response letters

Comment "DPDP" or send me a message

I'll share the details of the kit.

Educational content, not legal advice. Templates should be adapted by an advocate to each practice.